



DEPARTMENT OF EDUCATION

Colorado State Board of Education

RULES FOR THE ADMINISTRATION OF THE SUMMER SCHOOL GRANT PROGRAM FOR ACADEMIC ACHIEVEMENT

1 CCR 301-50

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

2207801-R-1.00 Statement of Basis and Purpose.

The statutory basis for these rules, adopted November 8, 2001, repealed on October 9, 2003, and re-adopted on February 8, 2007 is found in 22-2-106(1)(a) and (c), State Board duties; 22-2-107(1)(c), State Board powers; and 22-7-801 through 22-7-807, C.R.S., the Summer School Grant Program for Academic Achievement.

The Summer School Grant Program, 22-7-801 through 22-7-807, C.R.S., requires the State Board of Education to promulgate rules which include, but are not limited to: The funding of programs designed to provide intensive reading, writing, and/or mathematics services to eligible children; application procedures that describe the research-based curriculum and assessments that the school district will use in the summer program; the number of eligible students to be served; time frames for submitting applications; the form of the grant program application; evaluation of progress; and other criteria the State Board may deem appropriate.

2207801-R-2.00 Definitions.

2.00 (1) CSAP.

The Colorado Student Assessment Program administered pursuant to section 22-7-409, C.R.S.

2.00 (2) Department (CDE).

Department (CDE) means the Department of Education created and existing pursuant to section 24-1-115, C.R.S.

2.00 (3) Eligible Student.

A student who will begin fifth, sixth, seventh, or eighth grade in the next academic year and who has received an unsatisfactory proficiency level score on the reading, writing, or mathematics assessment administered through the CSAP for the preceding academic year.

2.00 (4) Grant Program.

Grant Program means the Summer School Grant Program created in section 22-7-803, C.R.S. to provide grants to school districts and institute charter schools to operate summer school programs that will provide intensive reading, writing, or mathematics education services to students entering the fifth through eighth grades who received an unsatisfactory proficiency level score on the reading, writing, or mathematics subject area(s) of the Colorado Student Assessment Program (CSAP) for the previous academic year. Research-based practices will be required that can demonstrate significant improvement in a student's reading, writing, or mathematics achievement in a short period of time.

2.00 (5) State Board.

State Board means the State Board of Education created pursuant to Section I of Article IX of the State Constitution.

2207801-R-2.01 Implementation Procedures.

2.01 (1) Funding Levels.

CDE will accept applications from school districts, a group of school districts (consortium), and /or institute charter schools to fund the operation of summer school reading, writing, and/or mathematics programs for eligible students. In total, a minimum of eight regional grants (at least one grant per region) will be awarded to a school district, a group of school districts (consortium), and /or an individual grant to an institute charter school. The grant awards will be proportionate in each region based on the number of eligible students within each region.

2.01 (1)(a)

For the 2006-2007 budget year and for each budget year thereafter, subject to available appropriations, the general assembly shall annually appropriate from the state education fund for summer school programs. School district(s) and/or institute charter schools applying for subsequent grants will not be funded in successive years, if adequate progress was not demonstrated in the previous grant cycle.

2.01 (1)(B)

All grants awarded pursuant to 22-7-803 C.R.S. will be issued to school districts or Institute Charter Schools on or before April 30 of each budget year for which moneys are appropriated for the grant program.

2.01 (2) Application Procedures and Timelines.

Programs will be funded on an annual basis based on the most recent CSAP results regarding unsatisfactory performance of students in the subject area(s) of reading, writing, and/or mathematics, who are entering the fifth through eighth grades. CDE will develop a Request for Proposal (RFP), pursuant to the requirements found in 22-7-803, C.R.S. In order for applications to be approved by CDE, applicants must submit, on forms to be provided by CDE, the following documentation, assurances, and/or information on or before March 21 of each year:

2.01 (2)(a)

The number of eligible students the school district(s) and / or institute charter school will serve.

2.01 (2)(b)

A description of the curriculum that the school district(s) and/or institute charter school will use in the Summer School Program. The school district(s) and/or institute charter school must assure to CDE in its application that the proposed curriculum is aligned with Colorado's academic content standards for reading, writing, and/or mathematics and that the proposed curriculum and program(s) of instruction are research-based, with proven intensity to demonstrate significant improvement in a student's performance in a short period of time, and that it will be administered by teachers who have been trained in the use of the program.

2.01 (2)(c)

A draft budget in compliance with CDE's standard fiscal rules including a budget narrative. A final budget and budget narrative will be required after actual allocations are determined. Upon approval of a final budget and budget narrative, funds will be released to the grantees.

2.01 (2)(d)

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2.01 (2)(e)

Other assurances required by applicants in the application include: An assurance that the applicant will annually provide CDE such information as may be required to determine if the grantee is making satisfactory progress toward accomplishing the funded activities, including participation in evaluations or studies; an assurance that the district will not discriminate against anyone regarding race, gender, national origin, color, disability or age; an assurance that funded projects will maintain appropriate fiscal and program records and that fiscal audits of this program will be conducted by the grantees as a part of their regular audits; an assurance that if any findings of misuse of these funds are discovered, project funds will be returned to CDE; and an assurance that the grantee will maintain sole responsibility for the project even though subcontractors may be used to perform certain services.

2.01 (3) Reporting Requirements.

Each school district, group of school districts (consortium), and /or institute charter school participating in the program must submit an annual report to CDE on or before October 1 following the completion of the summer school program and shall include the following information:

2.01 (3)(a)

The number of eligible students who participated in the school district(s') and /or institute charter school's summer school program.

2.01 (3)(b)

Pre and post test performance data in the subject area(s) in which the summer school program was offered, based on an assessment instrument, determined by CDE, which will be administered to the eligible students before and after participating in the program.

2.01 (4) Evaluation of Progress

The Department will review pre and post test performance data, for each participating student, in the subject area(s) in which the summer school program was offered, based on an assessment instrument determined by CDE. A comparison of pre and post test data will be reviewed to evaluate the progress of programs.

Editor's Notes**History**

Entire rule eff. 04/30/2007.

Entire rule eff. 12/30/2007.